

IN THE COUNTY COURT, IN AND FOR ORANGE COUNTY, FLORIDA

CASE NO.: New Case

Demetri Pappas,

Plaintiff,

vs.

Thanh Nguyen,

Defendant.

STATEMENT OF CLAIM (RETURN OF SECURITY DEPOSIT)

Plaintiff, **Demetri Pappas**, sues Defendant, **Thanh Nguyen**, and alleges:

I. JURISDICTION AND VENUE

1. This is an action for damages that do not exceed \$8,000, exclusive of costs, interest, and attorney's fees. It falls strictly within the jurisdiction of this Small Claims Court.
2. Venue is proper in this County because the residential real property that is the subject of this dispute is located at: **1224 Culver Road, Orlando, FL, 32825**.

II. GENERAL ALLEGATIONS

3. On or about 8/11/2025, Plaintiff and Defendant entered into a written residential lease agreement for the premises. *(A copy of the Lease Agreement is attached as Exhibit A)*.
 4. Pursuant to the lease agreement, Plaintiff paid Defendant a security deposit totaling **\$1,000**.
 5. Plaintiff was fully paid through the end of the tenancy term, which legally concluded on **April 30**.
 6. Plaintiff physically vacated the premises on **April 11**. No keys were turned over because no physical keys were provided or required by the landlord.
 7. As of the date of this filing, Defendant has failed to return Plaintiff's security deposit.
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COUNT I: FORFEITURE OF CLAIM FOR FAILURE TO PROVIDE STATUTORY NOTICE

(Florida Statute § 83.49(3)(a) and § 83.49(5))

8. Plaintiff re-alleges and incorporates paragraphs 1 through 7 as if fully set forth herein.
 9. Pursuant to **Florida Statute § 83.49(3)(a)**, a landlord has a strict **30-day window** from the date a tenant vacates the premises to provide the tenant with written notice via certified mail of an intention to impose a claim on the deposit.
 10. Plaintiff physically vacated the property on **April 11**. Defendant's strict statutory deadline to issue a proper written notice of intent to deduct expired on **May 11**.
 11. Defendant utterly failed to provide any written notice of intent to impose a claim via certified mail within the 30-day statutory window, or **at any point thereafter**.
 12. Plaintiff acted in consistent good faith by providing Defendant with an initial text message notice of intent to vacate forty-five (45) days in advance on **March 15** (*Exhibit B*).
 13. Plaintiff further provided a formal, written notice with a forwarding address on **April 21** (*Exhibit C*).—which was a full nine (9) days prior to the official legal expiration of the paid tenancy term on **April 30**. This fully satisfies the spirit and timeframe of the 7-day notice rule in **Florida Statute § 83.49(5)**.
 14. Because Defendant failed to send the mandatory notice of intent to withhold required by § 83.49(3)(a), Defendant has **automatically forfeited the right to make any claim** against the security deposit.
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COUNT II: UNJUSTIFIED DEDUCTIONS, COMMUNAL UTILITY CHARGES, AND ILLEGAL WITHHOLDING

(Alternative Count)

15. Plaintiff re-alleges and incorporates paragraphs 1 through 7 as if fully set forth herein.
16. In the alternative, if the Court finds that Defendant did not forfeit his right to claim against the deposit due to his failure to use certified mail, Plaintiff asserts that Defendant's specific itemized deductions are entirely unreasonable, unlawful, and unsupported by facts. *Deductions are attached as Exhibit D.*
17. At all times during Plaintiff's tenancy, the premises functioned as a shared, high-occupancy household. The property was concurrently occupied by the **Defendant (Landlord), the Defendant's girlfriend, and a variable, rotating number of up to four (4) other active tenants** who all shared equal, unrestricted access to the communal kitchen spaces, appliances, plumbing, and utility systems.

18. Defendant's attempted deductions for "Well chlorination (Stenner pump) installation" (\$800), "Sink grease trap service" (\$300), and "Septic grease removal" (\$600) represent structural maintenance and routine mechanical servicing of property-wide utility systems.
 19. Under Florida law, a landlord bears the explicit **burden of proof** to isolate and tie property damage directly to the negligent actions of a specific tenant. Because five separate individuals continuously utilized these shared systems, Defendant cannot mathematically or legally isolate these system maintenance costs to the Plaintiff.
 20. Defendant's deduction for a "Calphalon Hard Anodized Cookware Set" (\$300) is defective because the cookware was a communal item used by all five occupants. Furthermore, Defendant is attempting to charge Plaintiff the full replacement cost for a new item, completely ignoring mandatory asset depreciation rules under Florida case law.
 21. The items listed by the Defendant constitute routine wear, tear, and capital overhead expenses of running a multi-tenant rooming house, which are legally the exclusive financial responsibility of the landlord.
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PRAYER FOR RELIEF

WHEREFORE, Plaintiff, **Demetri Pappas**, respectfully requests this Court to enter a judgment against Defendant, **Thanh Nguyen**, for:

- The return of the full security deposit amount of **\$1,000**;
- Court filing fees and service of process costs;
- Pre-judgment interest; and
- Reasonable attorney's fees if an attorney is retained, pursuant to the prevailing party mandate in **Florida Statute § 83.49(3)(c)**.

Dated: July 4th, 2026.

Respectfully submitted,

Demetri Pappas, Plaintiff Pro Se,

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